

Council Meeting
April 23, 2025
Page 1

The Claremont City Council held a meeting on Wednesday, April 23, 2025, in the Council Chambers of City Hall.

The meeting was called to order by Mayor Girard at 6:30 p.m.

Members of the Council present:

Ward I Councilor Andrew O’Hearne
Ward II Councilor Brian Zutter – Absent
Ward III Councilor Jonathan Hayden
Assistant Mayor Debora Matteau
At-Large Councilor William Greenrose
At-Large Councilor Wayne Hemingway
At-Large Councilor William Limoges
At-Large Councilor Nicholas Koloski
Mayor Dale Girard

Also present:

Nancy Bates, Interim City Manager/Finance Director
Brent Wilmot, Interim City Manager/Chief of Police

AGENDA CHANGES

Mayor Girard removed New Business Items: Xplor Presentation, and the Water and Sewer rate discussion.

A motion was made by Assistant Mayor Matteau and seconded by Councilor Limoges to add two items to the agenda; a non-public RSA 91: A-3 II(a) after future agenda items and add Washington Street Paving under new business.

Roll call:

Koloski – yes

Greenrose – yes

Limoges - yes

Matteau – yes

Hemingway – yes

Hayden – yes

O’Hearne – no

Girard – yes

Motion carried 7-1

REPORT OF THE SECRETARY

A motion was made by Assistant Mayor Matteau and seconded by Councilor Hemingway to accept the minutes of the April 9, 2025, City Council meeting.

Voice vote:

Koloski – yes

Greenrose – yes

Limoges - yes

Matteau – yes

Hemingway – yes

Hayden – yes

O’Hearne – yes

Girard – yes

Motion carried 8-0

MAYOR’S NOTES

Claremont Police Department will be hosting a drug take back day on Saturday April 26, 2025 at CVS between 10:00 am and 2:00 pm.

Turning Points Network will be hosting a stepping up to end violence 5k walk on Saturday May 3rd.

Ribbon cutting for the flume slide at Claremont Savings Bank Community Center will be held tomorrow afternoon at 3:00 pm.

Claremont Parks and Recreation with the Claremont Elks Club will be hosting a Story Walk Tuesday, April 29 at 5:30 pm.

Resignations from Frances J Tolles Home: Nancy Porier, and Sherrie Curtis.

A motion was made by Councilor O’Hearne and seconded by Assistant Mayor Matteau to accept the Frances J. Tolles Home resignations.

Voice vote:

Koloski – yes

Greenrose – yes

Limoges - yes

Matteau – yes

Hemingway – yes

Hayden – yes

O’Hearne – yes

Girard – yes

Motion carried 8-0

Mayor Girard read a statement on behalf of the Council to inform the public that the Council had parted ways with City Manager, Yoshi Manale, and thanked him for his time in Claremont. Mayor Girard announced there will be two co-Interim City Managers, Nancy Bates the Finance Director and Brent Wilmot, the Chief of Police. Additionally, Mayor Girard thanked City employees.

Assistant Mayor Matteau noted it was Administrative Professionals Day, and gave recognition to the Clerk of the Council.

CITY MANAGER'S REPORT

Chief Wilmot noted issues with traffic signals and stated the Fire Department is aware, and working on getting them fixed.

Paving for the Fire Department has started.

A Background investigation has begun for a Planning and Development Director.

Three Collective Bargaining Units are in negotiations, all three unions have reached a tentative agreement with the City pending redlined approval from both city and union.

Deployment of body worn cameras are complete and thanked the council for their support in these efforts.

CITIZEN'S FORUM

Mayor Girard gave reminder that Citizen's forum is designed to allow you the opportunity to make the Council aware of your concerns. Please state your name and ward number, we ask you to address your concerns directly to the Council. The Council Manager will not be responding to you during this time. You are limited to five minutes on any non-agenda items. In the back of the room please write down your contact information if you'd like to be contacted as well as your concern on the clipboard for follow-up.

Charlene Lovett, Ward II, speaking as a Rotary Club member, noted yesterday was kick-off day for the community wide clean up event, and there was overwhelming support from community.

Chief Chamberlian, mentioned an event the Fire Department is hosting this Saturday: a smoke alarm blitz for the Washington Street neighborhoods, will be working with the American Red Cross and offering free smoke detectors.

Norm Blouin, Ward III, thanked Dale for help this past spring, and then stated the concern for handicapped individuals walking from the front to the back of City Hall, and suggested benches

or chairs in the hallway. Mr. Blouin's next concern was infrastructure and stated the city needs to do a better job with it. Then added a bridge is needed from Washington to Chestnut.

Lisa Richmond, Ward III, read the following statement

On June 14, 2023, I spoke at citizens forum. My opening line was, "Good Governance requires transparency, accountability, rule of law, equity, inclusiveness, and consensus." One of the essential parts of my comments that night was at the conclusion when I formally requested Claremont City Council form a committee to address these issues. To date, no one from the city or council has contacted me, and I am not aware that a committee has been formed.

Two department heads with over 40+ years of combined experience with the City of Claremont announced their retirement two months into the former city manager's tenure, which should have raised councilors' interest and prompted a conversation. It did not.

After I spoke out in June 2023, you would think that would peaked interest in having a conversation. It did not.

I have read the press releases in which the council cited four areas for the city managers firing—honesty, lack of information in council packets, lack of follow-up communication with the council, and lack of departmental control and accountability.

If the council formed a committee that one of your constituents called for, then this is part of what I would have said:

Within weeks of being appointed manager, the former manager requested that finance pay his personal cell phone bill because he did not want to use the city-provided phone. His employment contract did NOT provide this benefit, and finance had no legal authority to pay for his personal cell phone. I met with the mayor at his place of business to make him aware of the situation since the city manager is the council's employee. The resolution to this situation was to change the policy in which employees are reimbursed for their personal phones.

The city currently has a lawsuit at the superior court that, in all likelihood, will involve the former manager. The lawsuit will require discovery—text messages, emails, and phone records. Since the city has allowed the manager, its only employee, to use his personal cell phone for city business, I believe the council has a legal responsibly to preserve those records.

Recently, I have been reading in the paper that the city departments did not follow the purchase policy.

There were reasons why on March 22, 2023 - Resolution 2023-25, Supplemental Appropriate for Consulting Service Contract between the City of Claremont and Merchant McIntyre & Associates, LLC, was in your council packet for vote. This was not a planned budgeted expense, and the purchase policy was not followed. Finance had no legal authority to pay the expenses as requested. The only party with legal authority to authorize payment was the council.

I take legal authority, honesty, and ethics very seriously and will not compromise my principles for anyone. Finding myself in a very difficult situation, I retired from the city and government work.

We as a city need to find a path to move forward with a new manager. My experience with the five CEO searches is that top-down hiring approach does not work. You need city staff to be part of this process. Who better than the staff to weed out the competent candidates verse the ones who are all

Hope Damon, Sullivan District 8 State Representative, gave updates on the State budget process.

OLD BUSINESS

DPW Leases

A motion was made by Councilor O’Hearne and seconded by Assistant Mayor Matteau to take Resolution 2025-42 DPW Leases off the table.

Roll Call:

Koloski – yes

Greenrose – yes

Limoges - yes

Matteau – yes

Hemingway – yes

Hayden – yes

O’Hearne – yes

Girard – yes

Motion carried 8-0

Cathy Parks, Treasurer –noted the loader and excavator are at the dealership, and the trucks are at an outfitter and pending this approval.

Mayor Girard noted he was in favor of 3 out of 4 vehicles.

Councilor Hemingway had a concern about leasing for 5 years is a short amount of time.

Councilor Limoges agrees to take the loader off the table.

RESOLUTION 2025-42

DPW Leases

BE IT RESOLVED by the City Council of the City of Claremont, New Hampshire after public hearing duly noticed that the City Manager or his designee; and

WHEREAS certain fleet vehicles in the Department of Public Works were scheduled to be acquired or replaced in 2025, with funds having been raised and appropriated therefore in the 2025 operating budget; and

WHEREAS the City is prepared to lease certain vehicles for the Department of Public Works through a lease/purchase arrangement.

NOW THEREFORE BE IT RESOLVED that the City Manager or his designees are hereby authorized to enter into a 5-year lease/purchase agreement in the principal amount of ~~\$432,535.00~~ **\$232,894.00** ~~Without the loader~~ for the lease of Department of Public Works equipment, said costs, including interest, for the first annual payment having been raised and appropriated in the 2025 budget; and

BE IT FURTHER RESOLVED the proposed lease agreements shall contain a termination clause in the event of non-appropriation of sufficient funds for any year subsequent to the first year of the agreement. *(Majority vote required)*

Dated this 26th day of March 2025 the City of Claremont, County of Sullivan, State of New Hampshire.

A motion was made by Councilor Hemingway and seconded by Councilor O'Hearne to Accept Resolution 2025-42 with the change to remove the loader.

Councilor Hemingway read resolution 2025-42 into record.

Mayor Girard opened a public hearing, no one spoke. Mayor Girard closed the public hearing.

Roll call:

Koloski – yes

Greenrose – yes

Limoges - yes

Matteau – yes

Hemingway – yes

Hayden – no

O'Hearne – yes

Girard – yes

Motion carried 7-1

NEW BUSINESS

Resolution 2025-45 Airport Lease Agreement

Chief Chamberlain presented a lease agreement to construct a new private hangar at the Claremont facility. This lease is modeled after current agreements at the airport and vetted by NHDOT of Aeronautics. The lease term is 20 years with annual rent. If approved the lease will take effect on May 1st, 2025

A motion was made by Councilor O’Hearne and seconded by Assistant Mayor Matteau to accept Resolution 2025-45.

Councilor O’Hearne read resolution 2025-45 into the record.

Chief Chamberlain asked to make a correction, the total land area will be 2859 square feet not 4000 square feet.

Councilor O’Hearne and Assistant Mayor Matteau accept this change.

Mayor Girard opened a public hearing, no one spoke. Mayor Girard closed the public hearing.

Roll call:

Koloski – no

Greenrose – yes

Limoges - yes

Matteau – yes

Hemingway – yes

Hayden – yes

O’Hearne – yes

Girard – yes

Motion carried 7-1

Resolution 2025-46 Victims of Crime Act (VOCA) Grant

Chief Wilmot presented resolution 2025-46 and noted this is the third time these funds have come before the Council, and the 2nd year the grant has come from the Department of Justice VOCA to support our adverse child experience response team coordinator. Ms. Durkee and her role is to work with children and families.

Coordinator Stephanie Durkee shared data and explained her role.

A motion was made by Councilor O’Hearne and seconded by Councilor Limoges

to Accept Resolution 2025-46.

Councilor O’Hearne read resolution 2025-46 into record.

Councilor Koloski thanked Stephanie for her work, and noted a family whose entire world had changed due her help.

Mayor Girard opened a public hearing, no one spoke. Mayor Girard closed the public hearing.

Roll call:

Koloski – yes

Greenrose – yes

Limoges - yes

Matteau – yes

Hemingway – yes

Hayden – yes

O’Hearne – yes

Girard – yes

Motion carried 8-0

Washington Street Paving

Director Gleeson noted the city was thrown a curveball regarding the paving this week. The original bid that had gone out in March of 2024 had an estimate of 71,000 tons and clearly noted it was an estimate. Director Gleeson explained it was recommended that everyone bidding was to measure the area themselves and then to bid accordingly. Funds were approved back in December, the company had reached out stating it was going to cost more, Director Gleeson reached out to said company and discussed the options.

One of the options were to make the depth of the pavement less. Director Gleeson explained the City should stick with the 2 inch instead of less because it is a heavily traveled road, and is looking for guidance on approach.

Councilor Greenrose asked what the recourse is.

Director Gleeson noted the City can term the contract but the stage we are in is kind of a bind and prep work has already begun.

Mayor Girard had concerns for different thickness in pavement, and hates the idea of spending more money, but noted it’s an important job. Mayor Girard asked if there is a potential to remove the rail trail piece and use those funds.

Director Bates came up with some solutions such as using the Transportation Fund and noted there was plenty of money to cover or use Fund balance.

Councilor Koloski shared concerns about Domino's and their potential curb cuts on Washington.

Director Bates stated the Transportation Funds are from motor vehicles registrations, money had been used from this fund for the twin culverts and was approved for about \$19,000. There is currently \$289,000.

Councilor O'Hearne is not happy about looking for money and would like to use the rail trail and then find funds.

Councilor Hayden stated being curious about negotiating the rail trail.

Councilor Hemingway asked where the fund balance stands.

Director Bates noted having an estimate of being over the maximum cap but doesn't have the 2024 audit yet.

Mayor Girard suggested using the transportation fund and add into the resolution for UP TO that new total cost.

Assistant Mayor Matteau thinks the City needs to move forward, if it were re-bid it would be well over what the new price is and has concerns waiting until the next meeting.

Director Bates stated if the Council commits to moving forward with Pike and we already have the 1.2 there will be plenty of time to figure out the difference.

Councilor Koloski wants the ability to speak to legal counsel.

Consensus from the Council for legal Counsel to attend the next meeting.

COMMITTEE REPORTS

Councilor Hayden noted the Conservation Commission will do a natural resource inventory presentation in May or later and is still finalizing for public programs in May. There will be a pollinator presentation in June and is looking to replace the bushes at the visitor's center.

Councilor O'Hearne noted with the two members resigning there is an opening and applications would be due by May 7th.

FUTURE AGENDA ITEMS AND DIRECTIVES

Councilor Hayden stated a constituent reach out with a concern for Barnes Park baseballs hitting their house and vehicles.

Councilor Hayden also shared concerns about the speedway running every day.

Chief Wilmot noted Sundays were on their license, the issue was additional testing days and will provide more information.

Councilor Hemingway asked for a 2025 and future paving list.

Assistant Mayor Matteau asked to see employees listed out department by department, and a list of outside contracts for each department. Assistant Mayor Matteau doesn't want Class VI roads to fall through the cracks, and if the City can add the City Manager residency requirements on the November election, and an update for the Dam.

Councilor Koloski would like an update on the balcony at the Opera House, 17 Water Street full costs and suggested a community center task force. Councilor Koloski asked for an update on Fiske Reservoir Road and noted there was work that had stopped and now school children moving rocks in the road, Councilor Koloski also brought up a Council member sitting in for union negotiations, Director Bates noted that was on the radar.

NON PUBLIC RSA 91-A3 : II (c)

Members of the Council present:

At-Large Councilor Nicholas Koloski
At-Large Councilor William Greenrose
At-Large Councilor William Limoges
Assistant Mayor Debora Matteau
At-Large Councilor Wayne Hemingway
Ward 3 Councilor Jonathan Hayden
Ward 1 Councilor Andrew O'Hearne
Mayor Dale Girard

Motion by Assistant Mayor Matteau to enter Non-Public under RSA 91-A:3, II (a) and seconded by Councilor Limoges and invite Chief Wilmot and Nancy Bates.

Roll call:

Koloski – no
Greenrose – yes
Limoges - yes
Matteau – yes
Hemingway – yes
Hayden – yes

O'Hearne – yes
Girard – yes
Motion carried 7-1

Entered nonpublic at 8:44 PM

Reentered public session at 9:24 PM

Motion by Asst Mayor Matteau to increase the salaries of Director Bates and Chief Wilmot to the top level of their current pay grade as well as provide a stipend to each at \$465.00 per pay period until a new manager is hired. Motion 2nd by Councilor Greenrose.

Roll Call Vote:
Koloski – Yes
Greenrose – Yes
Limoges – Yes
Matteau – Yes
Hemingway – Yes
Hayden – Yes
O'Hearne – Yes
Girard – Yes
Motion carried 8-0

Motion by Councilor O'Hearne to adjourn at 9:26 PM seconded by Asst Mayor Matteau.

Voice vote:
Koloski - Yes
Greenrose – Yes
Limoges – Yes
Matteau – Yes
Hemingway – Yes
Hayden – Yes
O'Hearne – Yes
Girard – Yes
Motion carried 8-0

Minutes submitted by Mayor Dale Girard

Respectfully Submitted,

Julia A. Bizzarro
Clerk to the Council